

STATE OF NEW YORK

6923--A

2025-2026 Regular Sessions

IN ASSEMBLY

March 18, 2025

Introduced by M. of A. WEPRIN, PHEFFER AMATO -- read once and referred to the Committee on Insurance -- recommitted to the Committee on Insurance in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the insurance law, in relation to requiring health insurance plans to provide coverage for continuous blood glucose monitors for all children

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subparagraph (A) of paragraph 15-a of subsection (i) of
2 section 3216 of the insurance law, as amended by chapter 338 of the laws
3 of 2003, is amended to read as follows:

4 (A) Every policy which provides medical coverage that includes cover-
5 age for physician services in a physician's office and every policy
6 which provides major medical or similar comprehensive-type coverage
7 shall include coverage for the following equipment and supplies for the
8 treatment of diabetes and other sugar disorders, if recommended or
9 prescribed by a physician or other licensed health care provider legally
10 authorized to prescribe under title eight of the education law, regard-
11 less of the patient's age: blood glucose monitors and blood glucose
12 monitors for the visually impaired, continuous blood glucose monitors,
13 including but not limited to those covered by the state's preferred
14 diabetic supply program, data management systems, test strips for
15 glucose monitors and visual reading and urine testing strips, insulin,
16 injection aids, cartridges for the visually impaired, syringes, insulin
17 pumps and appurtenances thereto, insulin infusion devices, and oral
18 agents for controlling blood sugar. In addition, the commissioner of the
19 department of health shall provide and periodically update by rule or
20 regulation a list of additional diabetes equipment and related supplies
21 such as are medically necessary for the treatment of diabetes, for which

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD10846-02-6

1 there shall also be coverage. Such policies shall also include coverage
2 for diabetes self-management education to ensure that persons with
3 diabetes are educated as to the proper self-management and treatment of
4 their diabetic condition, including information on proper diets. Such
5 coverage for self-management education and education relating to diet
6 shall be limited to visits medically necessary upon the diagnosis of
7 diabetes, where a physician diagnoses a significant change in the
8 patient's symptoms or conditions which necessitate changes in a
9 patient's self-management, or where reeducation or refresher education
10 is necessary. Such education may be provided by the physician or other
11 licensed health care provider legally authorized to prescribe under
12 title eight of the education law, or their staff, as part of an office
13 visit for diabetes diagnosis or treatment, or by a certified diabetes
14 nurse educator, certified nutritionist, certified dietitian or regis-
15 tered dietitian upon the referral of a physician or other licensed
16 health care provider legally authorized to prescribe under title eight
17 of the education law. Education provided by the certified diabetes nurse
18 educator, certified nutritionist, certified dietitian or registered
19 dietitian may be limited to group settings wherever practicable. Cover-
20 age for self-management education and education relating to diet shall
21 also include home visits when medically necessary.

22 § 2. Subparagraph (A) of paragraph 7 of subsection (k) of section 3221
23 of the insurance law, as amended by chapter 338 of the laws of 2003, is
24 amended to read as follows:

25 (A) Every group or blanket accident and health insurance policy issued
26 or issued for delivery in this state which provides medical coverage
27 that includes coverage for physician services in a physician's office
28 and every policy which provides major medical or similar comprehensive-
29 type coverage shall include coverage for the following equipment and
30 supplies for the treatment of diabetes and other sugar disorders, if
31 recommended or prescribed by a physician or other licensed health care
32 provider legally authorized to prescribe under title eight of the educa-
33 tion law, regardless of the patient's age: blood glucose monitors and
34 blood glucose monitors for the visually impaired, continuous blood
35 glucose monitors, including but not limited to those covered by the
36 state's preferred diabetic supply program, data management systems, test
37 strips for glucose monitors and visual reading and urine testing strips,
38 insulin, injection aids, cartridges for the visually impaired, syringes,
39 insulin pumps and appurtenances thereto, insulin infusion devices, and
40 oral agents for controlling blood sugar. In addition, the commissioner
41 of the department of health shall provide and periodically update by
42 rule or regulation a list of additional diabetes equipment and related
43 supplies such as are medically necessary for the treatment of diabetes,
44 for which there shall also be coverage. Such policies shall also include
45 coverage for diabetes self-management education to ensure that persons
46 with diabetes are educated as to the proper self-management and treat-
47 ment of their diabetic condition, including information on proper diets.
48 Such coverage for self-management education and education relating to
49 diet shall be limited to visits medically necessary upon the diagnosis
50 of diabetes, where a physician diagnoses a significant change in the
51 patient's symptoms or conditions which necessitate changes in a
52 patient's self-management, or where reeducation or refresher education
53 is necessary. Such education may be provided by the physician or other
54 licensed health care provider legally authorized to prescribe under
55 title eight of the education law, or their staff, as part of an office
56 visit for diabetes diagnosis or treatment, or by a certified diabetes

nurse educator, certified nutritionist, certified dietitian or registered dietitian upon the referral of a physician or other licensed health care provider legally authorized to prescribe under title eight of the education law. Education provided by the certified diabetes nurse educator, certified nutritionist, certified dietitian or registered dietitian may be limited to group settings wherever practicable. Coverage for self-management education and education relating to diet shall also include home visits when medically necessary.

§ 3. Paragraph 1 of subsection (u) of section 4303 of the insurance law, as amended by chapter 338 of the laws of 2003, is amended to read as follows:

(1) A medical expense indemnity corporation or a health service corporation which provides medical coverage that includes coverage for physician services in a physician's office and every policy which provides major medical or similar comprehensive-type coverage shall include coverage for the following equipment and supplies for the treatment of diabetes and other sugar disorders, if recommended or prescribed by a physician or other licensed health care provider legally authorized to prescribe under title eight of the education law, regardless of the patient's age: blood glucose monitors and blood glucose monitors for the visually impaired, continuous blood glucose monitors, including but not limited to those covered by the state's preferred diabetic supply program, data management systems, test strips for glucose monitors and visual reading and urine testing strips, insulin, injection aids, cartridges for the visually impaired, syringes, insulin pumps and appurtenances thereto, insulin infusion devices, and oral agents for controlling blood sugar. In addition, the commissioner of the department of health shall provide and periodically update by rule or regulation a list of additional diabetes equipment and related supplies such as are medically necessary for the treatment of diabetes, for which there shall also be coverage. Such policies shall also include coverage for diabetes self-management education to ensure that persons with diabetes are educated as to the proper self-management and treatment of their diabetic condition, including information on proper diets. Such coverage for self-management education and education relating to diet shall be limited to visits medically necessary upon the diagnosis of diabetes, where a physician diagnoses a significant change in the patient's symptoms or conditions which necessitate changes in a patient's self-management, or where reeducation or refresher education is necessary. Such education may be provided by the physician or other licensed health care provider legally authorized to prescribe under title eight of the education law, or their staff, as part of an office visit for diabetes diagnosis or treatment, or by a certified diabetes nurse educator, certified nutritionist, certified dietitian or registered dietitian upon the referral of a physician or other licensed health care provider legally authorized to prescribe under title eight of the education law. Education provided by the certified diabetes nurse educator, certified nutritionist, certified dietitian or registered dietitian may be limited to group settings wherever practicable. Coverage for self-management education and education relating to diet shall also include home visits when medically necessary.

§ 4. This act shall take effect on the ninetieth day after it shall have become a law, and shall apply to policies and contracts issued, renewed, amended, modified or altered on or after such date.